



CHAPTER xx.

An Act to confirm a Provisional Order of the Minister of Health relating to Stratford-upon-Avon. A.D. 1924.
[14th July 1924.]

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888: 51 & 52 Vict. c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Stratford-upon-Avon Extension) Act 1924. Short title.

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

SCHEDULE.

*Stratford-
upon-Avon
Order.*

BOROUGH OF STRATFORD-UPON-AVON.

*Provisional Order made in pursuance of the Local
Government Act 1888 for the extension of a Borough.*

WHEREAS by virtue of Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough;

And whereas the existing Borough of Stratford-upon-Avon in the Administrative County of Warwick is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Stratford-upon-Avon and act by the Council of the said Borough;

And whereas the said Borough comprises the Parishes of Old Stratford Within and Stratford on Avon and is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council;

And whereas—

- (a) The Stratford-upon-Avon Borough Act 1879 and the Confirmation Acts specified in the Schedule to this Order;
 - (b) The Baths and Washhouses Acts 1846 to 1899;
 - (c) The Infectious Disease (Prevention) Act 1890;
 - (d) The Public Health Acts Amendment Act 1890 (except Part IV.); and
 - (e) The Public Libraries Acts 1892 to 1919;
- are in force in the said Borough;

And whereas by Part VII. of the Stratford-upon-Avon Borough Act 1879 the said Borough was divided into three wards for the election of councillors and it was provided that the Council of the Borough should consist (including the Mayor) of six aldermen (two for each ward) and eighteen councillors and that each ward should return six councillors;

And whereas the said Borough has a separate commission of the peace;

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

And whereas the Council of the said Borough are the authority for the execution of the Burial Acts 1852 to 1906 within the existing Borough;

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*

And whereas the Parish of Alveston in the Administrative County of Warwick immediately adjoins the said Borough and is a contributory place in the Rural District of Stratford-on-Avon and is subject to the jurisdiction of the Rural District Council of Stratford-on-Avon :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that on and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

PART I.

INTERPRETATION AND COMMENCEMENT.

1. In this Order unless the context otherwise requires :— Definitions

“ Existing ” in relation to any area altered by this Order means existing immediately before the commencement of this Order ;

“ Officer ” includes a servant ;

“ The Act of 1888 ” and “ the Act of 1894 ” mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;

“ The added area ” means the part of the Rural District of Stratford-on-Avon which is added to the existing Borough of Stratford-upon-Avon by this Order ;

“ The Borough ” means the existing Borough of Stratford-upon-Avon as extended by this Order ;

“ The Borough maps ” means the duplicate maps marked “ Map of the Borough of Stratford-upon-Avon as “ extended by the Stratford-upon-Avon (Extension) Order 1924 ” and sealed with the official seal of the Minister ;

“ The commencement of this Order ” means the First day of October Nineteen hundred and twenty-four ;

“ The Corporation ” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council ;

“ The County ” and “ the County Council ” mean respectively the Administrative County of Warwick and the County Council of that County ;

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*

“The Guardians” means the Guardians of the Stratford on Avon Poor Law Union;

“The Minister” means the Minister of Health;

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending the same;

“The Parish Council” means the Parish Council of Alveston;

“The Rural District” and “the Rural Council” mean respectively the Rural District of Stratford-on-Avon and the Rural District Council thereof;

“The Ward maps” means the duplicate maps marked
“Map of the Wards of the Borough of Stratford-
upon-Avon as extended by the Stratford-upon-
Avon (Extension) Order 1924” and sealed with the
official seal of the Minister.

Commence-
ment of
Order.

2. This Order shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of October Nineteen hundred and twenty-four :

Provided that for the purposes of all proceedings preliminary or relating to any election for any area affected by this Order to be held on a day later than the Thirtieth day of September Nineteen hundred and twenty-four this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATIONS OF BOUNDARY.

Extension of
Borough.

3.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the existing Parish of Alveston the area whereof is coloured yellow on the Borough maps.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Deposit of
maps.

4.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Minister and the duplicates of each map shall be deposited by the town clerk of the existing

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
 Extension) Act, 1924.*

Borough at his office within fourteen days after the date of this Order. A.D. 1924.

(2) Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners.

*Stratford-upon-Avon
 Order.*

(3) Copies of the Ward map so deposited and certified shall be sent within the aforesaid period to the Registrar-General and to the Minister of Agriculture and Fisheries.

5.—(1) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundary of the Borough.

Copies of
 map to be
 evidence.

(2) The Borough map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(3) All fees so received shall be carried to the credit of the borough fund.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

6. The number of councillors of the Borough shall be increased from eighteen to twenty-one and the number of aldermen of the Borough shall be increased from six to seven.

Number of
 Councillors
 and Alder-
 men.

7.—(1) Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

Municipal
 wards.

- (a) For the purposes of the election of councillors the Borough shall be divided into four wards to be called respectively the Guild Ward the Market Hall Ward the New Town Ward and the Alveston Ward;
- (b) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps;

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

*Stratford-
upon-Avon
Order.*

(c) Three councillors shall be assigned to the Alveston Ward;

(d) The Guild Ward the Market Hall Ward and the New Town Ward shall continue to be represented by six councillors and any councillor who represents immediately before the commencement of this Order one of the existing municipal wards shall continue to represent the ward of the same name constituted by this Order until the day on which he would have retired from office if this Order had not been made;

(e) If immediately before the commencement of this Order a casual vacancy shall exist in the representation of one of the existing municipal wards the vacancy shall be deemed to have arisen in the ward of the same name constituted by this Order.

(2) Part VII. (Division of Borough into Wards) of the Stratford-upon-Avon Borough Act 1879 and the Fourth and Fifth Schedules to that Act are hereby repealed.

Election of
councillors
in 1924.

8.—(1) Upon the First day of November Nineteen hundred and twenty-four there shall be held an election of—

(a) three councillors for the Alveston Ward of the Borough constituted by this Order;

(b) two councillors for each of the three remaining wards of the Borough constituted by this Order.

(2) The election directed by this Article shall extend to any casual vacancy which can be filled at the election but any person elected to fill a casual vacancy shall retire from office on the day on which the person in whose place he is elected would have gone out of office if this Order had not been made.

(3) The mayor and town clerk of the existing Borough or such other persons as the Minister may appoint shall perform the duties devolving upon a mayor and town clerk respectively under the Municipal Corporations Acts and the mayor shall be the returning officer at the election for all the wards but may appoint some other person to act as returning officer at the election for any of the wards.

(4) Where in the representation of a municipal ward constituted by this Order an ordinary vacancy and a casual vacancy are filled at the election held in pursuance of this Article the councillor elected by the smallest number of votes shall be deemed to fill the casual vacancy.

(5) If by reason of a poll not having been taken or for any other reason it is doubtful which of the councillors is to be

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
 Extension) Act, 1924.*

deemed to fill a casual vacancy the question shall be determined by lot conducted under the direction of the presiding chairman at the meeting of the Council of the Borough on the Tenth day of November Nineteen hundred and twenty-four or at the next following quarterly meeting.

A.D. 1924.
 —
*Stratford-upon-Avon
 Order.*

9. The first election of the additional alderman assigned to the Borough by this Order shall take place on the Tenth day of November Nineteen hundred and twenty-four and the additional alderman shall be chosen from among the councillors elected for the Alveston Ward or from among the persons qualified to be councillors whose qualification arises in that ward.

First election
 of additional
 alderman.

10. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the Borough.

County and
 Borough
 Councils
 (Qualification)
 Act 1914.

11.—(1) The two councillors of the Borough elected to fill ordinary vacancies in the representation of the Guild Ward the Market Hall Ward or the New Town Ward at the election directed by this Order shall retire from office on the First day of November Nineteen hundred and twenty-seven.

Retirement
 of council-
 lers and
 alderman
 elected in
 1924.

(2) The councillors of the Borough elected at the first election for the Alveston Ward shall retire from office as follows :—

- (a) The councillor who is elected by the smallest number of votes on the First day of November Nineteen hundred and twenty-five ;
- (b) The councillor who is elected by the largest number of votes on the First day of November Nineteen hundred and twenty-seven ;
- (c) The remaining councillor on the First day of November Nineteen hundred and twenty-six.

(3) If by reason of a poll not having been taken or for any other reason it is doubtful which of the councillors elected in pursuance of this Order ought to retire from office on the dates specified the question shall be determined by lot conducted under the direction of the presiding chairman at the meeting of the Council of the Borough on the Tenth day of November Nineteen hundred and twenty-four or at the next following quarterly meeting.

(4) The additional alderman of the Borough elected in pursuance of this Order shall retire from office on the Ninth day of November Nineteen hundred and twenty-eight.

12.—(1) For the purpose of the election of county councillors the added area shall be separated from the Wellesbourne Electoral

County
 electoral
 divisions.

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924. Division and shall be included in the Stratford-upon-Avon Borough (First) Electoral Division.

—
*Stratford-upon-Avon
Order.*

(2) The person who immediately before the commencement of this Order is the County Councillor representing the existing Wellesbourne Electoral Division or the existing Stratford-upon-Avon Borough (First) Electoral Division shall be deemed to have been elected to represent that Division as altered by this Order and shall retire from office on the day on which he would have retired if this Order had not been made.

Powers and
duties of
justices
extended.

13.—(1) The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough :

Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice in relation to any matter arising in or concerning any part of the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

(2) Section seventy-eight of the Stratford-upon-Avon Borough Act 1879 is hereby repealed.

Officers of
Corporation
and Borough
auditors
continued.

14.—(1) The town clerk and all other officers of the Corporation of the existing Borough who hold office immediately before the commencement of this Order shall continue to be the town clerk and officers of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

(2) The auditors of the existing Borough who are in office immediately before the commencement of this Order shall continue in office until the next ordinary day of election of borough auditors.

Corporation
property &c.

15. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough (other than property so vested and held on any charitable trust) shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which on the day aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on that day attach to the Corporation in respect of the existing Borough shall from and after that day attach to them in respect of the Borough.

Mortgage
debts of
Corporation.

16.—(1) So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

upon any fund of or rate levied within the existing Borough shall be charged upon the corresponding fund of or rate to be levied within the Borough.

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*

(2) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

17.—(1) Sections eighty-two eighty-three ninety-one ninety-two and ninety-six of the Stratford-upon-Avon Borough Act 1879 are hereby repealed.

Local Act
and Pro-
visional
Orders.

(2) The Confirmation Acts specified in Part I. of the Schedule to this Order so far as such Acts respectively relate to the Provisional Orders mentioned in that Part of the Schedule are hereby repealed.

(3) Subject to the provisions of this Order the unrepealed provisions of—

- (a) The Stratford-upon-Avon Borough Act 1879;
- (b) The Confirmation Acts specified in Part II. of the Schedule to this Order so far as such Acts respectively relate to the Provisional Orders mentioned in that Part of the Schedule; and
- (c) Any other Local Act or Provisional Order duly confirmed and affecting the existing Borough or the Corporation except the Provisional Orders mentioned in Part I. of the Schedule to this Order but including any Local Act or Provisional Order passed or confirmed during the present Session of Parliament;

as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and Corporation thereof.

(4) Notwithstanding the transfer by the Corporation to the Stratford-upon-Avon Electricity Company Limited of the undertaking authorised by the Stratford-upon-Avon Electric Lighting Orders 1901 and 1905 (which were confirmed by the Electric Lighting Orders Confirmation Acts included in Part II. of the Schedule to this Order) the Corporation shall be the undertakers for the purposes of those Orders within the added area and may if they think fit transfer the undertaking within that area with the consent of and on such terms and conditions as may be approved by the Electricity Commissioners by deed approved by those Commissioners.

[Ch. xx.] *Ministry of Health [14 & 15 GEO. 5.]*
Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.

A.D. 1924.
—
Stratford-
upon-Avon
Order.
Adoptive
Acts.

18.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 (except Part IV. thereof) and the Public Libraries Acts 1892 to 1919 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

(2) The provisions of any Adoptive Act (other than the Burial Acts and the Acts mentioned in subdivision (1) of this Article) shall cease to be in force in and apply to any part of the added area.

(3) Any order under the Infectious Disease (Notification) Act 1889 or under any Adoptive Act mentioned in subdivision (1) of this Article which is in force immediately before the commencement of this Order throughout the existing Borough shall extend and apply to the added area and any order under the Infectious Disease (Notification) Act 1889 in force on the day aforesaid in the added area shall save as hereinbefore provided cease to be in force in that area.

Orders under
the Public
Health Acts
Amendment
Act 1907.

19. Subject to any order which the Minister or the Secretary of State may make after the commencement of this Order the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907—

(1) The provisions of any order made before the commencement of this Order and declaring to be in force throughout the existing Borough any Parts or Sections of that Act shall have effect as if any reference in that order to the existing Borough extended and applied to the Borough and as if the said Parts or Sections were accordingly declared to be in force in the Borough :

(2) Any other order under that Act which is in force at the commencement of this Order throughout the existing Borough shall extend and apply to the added area :

(3) The provisions of any order made before the commencement of this Order and declaring to be in force in the added area any Parts or Sections of that Act shall cease to apply to the added area and the Parts or Sections declared by any such order to be in force shall save as hereinbefore provided cease to be in force in the added area.

Burial
Acts 1852
to 1906.

20.—(1) The Burial Acts 1852 to 1906 shall be in force within and apply to the Borough.

(2) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a Burial Board under the Burial Acts 1852 to 1906 :

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

Provided that no approval sanction or authorisation of the vestry of any parish within the Borough shall be required in respect of any act of the Corporation as the Burial Board.

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*

(3) Any table of fees and charges in force in respect of any existing burial ground maintained by the Corporation shall extend and apply to local government electors of the Borough and to persons dying within the Borough as such table applies to local government electors of the existing Borough and to persons dying within the existing Borough.

(4) Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

21. The powers duties and liabilities of a parish council transferred to or conferred upon the Corporation by the order of the Local Government Board under Section 33 of the Act of 1894 dated the Tenth day of September Nineteen hundred and thirteen as amended by the order of the Local Government Board dated the Thirtieth day of October Nineteen hundred and thirteen in relation to the appointment of Overseers and Assistant Overseers and other matters in those orders specified shall be deemed to have been transferred to or conferred upon the Corporation in respect of the Borough and of the Parishes of Alveston Old Stratford Within and Stratford on Avon and the said orders shall have effect accordingly.

Orders under
Section 33 of
the Act of
1894.

22. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied before the commencement of this Order.

Orders under
Shop Hours
Act 1904 or
Shops Acts
1912 to 1920.

23.—(1) Subject to the provisions of this Order—

(a) The byelaws made by the Corporation with respect to—

Byelaws
regulations
&c. of the
Corporation.

(i) new streets and buildings which were confirmed on the Seventh day of July Eighteen hundred and eighty-six; and

(ii) slaughter-houses which were confirmed on the Twenty-eighth day of June Eighteen hundred and eighty-six;

in so far as such byelaws may be in force throughout the existing Borough immediately before the com-

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*

mencement of this Order shall until the First day of January Nineteen hundred and twenty-five extend and apply to the Borough (unless previously repealed or altered) but on that day shall cease to be in force within any part of the Borough :

- (b) Save as hereinbefore provided all byelaws and every scale of charges made by the Corporation which immediately before the commencement of this Order may be in force throughout the existing Borough shall extend and apply to the Borough until such byelaws or scale of charges may be altered or repealed :

Provided that the byelaw numbered eleven in the byelaws made by the Corporation with respect to nuisances which were confirmed on the Twenty-eighth day of June Eighteen hundred and eighty-six shall not extend to the added area until three months after the commencement of this Order.

(2) In this Article "byelaws" includes any regulation and "scale of charges" includes any list of tolls or table of fees or payments.

Byelaws
regulations
&c. of the
Rural
Council and
County
Council.

24.—(1) Subject to the provisions of this Order—

- (a) All byelaws made by the Rural Council (or their predecessors) and in force immediately before the commencement of this Order in the added area shall on such commencement cease to be in force therein except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to their surveyor or clerk one month at least before that date and have not been disapproved by that Council :
- (b) All byelaws made by the County Council and in force immediately before the commencement of this Order in the added area shall in so far as byelaws to the like effect could be made by the Corporation cease to be in force in that area.

(2) As regards any work within the exception in paragraph (a) of subdivision (1) of this Article the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District.

(3) Any proceedings which if this Order had not been made might have been taken by the County Council or the Rural

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
 Extension) Act, 1924.*

Council for any offence committed before the commencement of this Order against any byelaws which by virtue of this Article cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the Corporation had been substituted therein for the County Council or the Rural Council as the case may require.

A.D. 1924.

—
*Stratford-
 upon-Avon
 Order.*

(4) In this Article "byelaws" includes any regulation.

25.—(1) Any byelaws under the Education Act 1921 or any enactment repealed by that Act which may be in force in the existing Borough immediately before the commencement of this Order shall apply to the Borough until revoked or altered in substitution for any such byelaws which may be in force in the added area.

Education
 byelaws and
 managers.

(2) Any managers of any public elementary school in the added area who were appointed by the Parish Council shall vacate office at the commencement of this Order.

26. Nothing in this Order shall be construed as extending any privileges conferred upon boys (whether as sons of burgesses or otherwise) by a Scheme of the Board of Education dated the Twenty-fourth day of December Nineteen hundred and nine regulating the Grammar School of King Edward the Sixth at Stratford-upon-Avon to boys who would not have been entitled to such privileges if this Order had not been made.

Grammar
 School
 of King
 Edward VI.

27. The power of the Parish Council to appoint a Representative Governor of the Hampton Lucy Grammar School Foundation under a Scheme of the Fifteenth day of January Eighteen hundred and ninety-seven shall be transferred to and vest in the Corporation without prejudice to the tenure of office of any Governor in office at the commencement of this Order.

Hampton
 Lucy
 Grammar
 School
 Foundation.

28. Nothing in this Order shall affect the area in which Sections 76 77 and 93 of the Education Act 1921 are in operation by virtue of Orders of the Board of Education dated respectively the Eighth day of April Nineteen hundred and twenty the Sixth day of December Nineteen hundred and twenty-one and the Twenty-eighth day of July Nineteen hundred and twenty-two.

Continuation
 schools.

29. Subject to the provisions of this Order—

- (1) The Rural Council shall cease to exercise any powers or discharge any duties within the added area :
- (2) Any property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council—

Cesser of
 jurisdiction
 of Rural
 Council and
 property &c.

(a) In relation exclusively to the added area or any part thereof ; or

(b) In relation to the added area or any part thereof conjointly with any other area ;

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*

shall in the first case by virtue of this Order be transferred to and vest in the Corporation as the Urban Authority for the execution of the Public Health Acts and shall in the second case be a matter for adjustment under Section 62 of the Act of 1888.

Assisted
Housing
Scheme of
the Rural
Council.

30.—(1) At the commencement of this Order the estate or interest of the Rural Council in such of the houses provided by that Council under the Assisted Housing Scheme as are situate within the added area shall by virtue of this Order be transferred to and vest in the Corporation as the authority for the execution of the Housing Acts 1890 to 1923.

(2) The rights liabilities obligations and property attaching to or vested in the Rural Council in relation to the Assisted Housing Scheme shall be a matter for adjustment under Section 62 of the Act of 1888.

(3) In this Article "the Assisted Housing Scheme" means the assisted housing scheme of the Rural Council for the Rural District under the Housing Town Planning &c. Act 1919.

Differential
rating to
general
district rate.

31.—(1) During a period of fifteen years commencing on the First day of April Nineteen hundred and twenty-five the total amount in the pound of the general district rate or rates to be made and levied by the Corporation upon any rateable hereditament situate within the added area or arising out of property so situate may in each of those years exceed the total amount in the pound of the general district rate or rates to be made and levied by the Corporation in the same year upon any rateable hereditament situate within or arising out of property situate within the remainder of the Borough by such an amount in the pound as may be necessary to produce for that year a sum of Five hundred and twenty-eight pounds.

(2) Any increase authorised by this Article of the amount in the pound of a general district rate may be levied by the Corporation over the added area as an additional item of the general district rate of the Borough and the provisions of the Public Health Acts relating to general district rates shall extend to any such additional item with such modifications as may be necessary.

(3) The provisions of this Article shall be deemed to be in full satisfaction of any claim by or on behalf of the Corporation whether as Burial Board or otherwise or by or on behalf of the Parish of Alveston to an adjustment under Section 62 of the Act of 1888 as between the existing Borough on the one hand and that Parish on the other hand in consequence of any of the provisions of this Order.

PART IV.

A.D. 1924.

SUPPLEMENTARY PROVISIONS.

*Stratford-upon-Avon
Order.*

32.—(1) The number of councillors of the Rural District shall be reduced by two.

Rural
district
councillors
for Alveston.

(2) The persons who immediately before the commencement of this Order are the rural district councillors for the Parish of Alveston shall at such commencement cease to hold that office but shall thenceforth be deemed to have been elected as guardians for the Parish of Alveston and shall remain in office until the day upon which they would have retired from office if this Order had not been made.

(3) If immediately before the commencement of this Order any casual vacancy shall exist in the office of rural district councillor for the Parish of Alveston the election to fill the vacancy shall be held as if the vacancy had arisen in the office of guardian for the Parish of Alveston but any person elected to fill the casual vacancy shall retire from office on the day on which the rural district councillor in whose place he is elected would have retired if this Order had not been made.

33. The Parish Council shall cease to exist.

Dissolution
of the Parish
Council.

34. Subject to the provisions of this Order—

Powers
property and
liabilities
of Parish
Council.

(1) Any powers and duties transferred by or under the Act of 1894 to the Parish Council (except powers and duties under any of the Adoptive Acts as defined in that Act) shall be vested in and imposed on the persons and authorities in or on whom they would be vested or imposed if the added area had been a parish within the Borough on the appointed day within the meaning of the Act of 1894 :

(2) Any property or liabilities held or incurred by the Parish Council for the purposes or by virtue of the powers and duties transferred by subdivision (1) of this Article shall by virtue of this Order be transferred to and vest in or attach to the persons and authorities aforesaid :

(3) Any property or liabilities held or incurred by the Parish Council for the purposes of any of the Adoptive Acts (as defined in the Act of 1894) or otherwise than for the purposes or by virtue of the powers and duties above mentioned shall by virtue of this Order be transferred to and vest in or attach to the Corporation.

35.—(1) As soon as practicable after the commencement of this Order the Rural Council as regards any cash balance in

Apportion-
ment by .

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

—
*Stratford-
upon-Avon
Order.*
the Rural
Council of
balances &c.

their hands at the commencement of this Order shall estimate the proportion thereof derived from contributions paid by the Parish of Alveston and subject to a deduction on account of undischarged liabilities in respect of that Parish accruing up to the commencement of this Order shall transfer such amount to the Corporation.

(2) This Article shall apply to any sum received after the commencement of this Order by the Rural Council under a precept issued before that date in respect of the Parish of Alveston as if such sum were a cash balance in the hands of the Council at the commencement of this Order.

(3) The apportionment under this Article of any balance or sum received under a precept shall be subject to review on an adjustment under this Order.

Adaptation
of provisions
as to adjust-
ments.

36. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect—

(a) As if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order; and

(b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

Saving for
contribution
orders and
precepts.

37. Notwithstanding the alterations of area effected by this Order all contribution orders and precepts made or issued before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

38. All rates made by the Overseers of the Parish of Alveston which are not collected at the commencement of this Order may be collected and recovered as if this Order had not been made.

Balance of
special
sanitary or
lighting rate
in hands of
Overseers.

39. Any balance at the commencement of this Order in the hands of the Overseers of the Parish of Alveston which may have been derived from any rate made for the purposes of the Public Health Acts or of the Lighting and Watching Act 1833 together with the arrears of any such rate collected after the commencement of this Order shall subject to the discharge of

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
 Extension) Act, 1924.*

any unsatisfied precept of the Rural Council or of the Parish Council for any purpose covered by the rate be paid to the Corporation.

A.D. 1924.

—
*Stratford-
 upon-Avon
 Order.*

Provisions as
 to register
 of electors.

40.—(1) In the preparation of the Autumn Register of Nineteen hundred and twenty-four in pursuance of the Representation of the People Acts 1918 to 1922 so far as it relates to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County of Warwick to frame the register in separate parts for each area which will constitute a registration unit after this Order has come into operation instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(2) If the register of local government electors for any electoral area affected by this Order is not so framed as to show the persons entitled to vote at an election to be held for an electoral division parish or ward or other voting area—

(a) the Town Clerk of the Borough in the case of an election for any voting area within the Borough; and

(b) the Registration Officer of the Parliamentary County in the case of an election for any voting area outside the Borough

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) It shall be the duty of the Overseers to render such assistance as may be required by the Town Clerk of the Borough or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

41.—(1) The Overseers of the Parish of Alveston shall continue in office until their successors come into office on the First day of April Nineteen hundred and twenty-five.

Overseers
 and
 assistant
 overseers.

(2) Any person holding immediately before the commencement of this Order the office of assistant overseer for the Parish of Alveston shall continue to hold office upon the same terms and subject to the same regulations liabilities and provisions as now apply to him in respect of that office.

42.—(1) Every officer in office on the date of the Act of Parliament confirming this Order who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers

Compensa-
 tion to exist-
 ing officers.

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.

A.D. 1924.

—
Stratford-
upon-Avon
Order.

any direct pecuniary loss by abolition of office or by diminution of loss of fees or salary (and for whose compensation no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

(2) Any officer whose services are dispensed with or whose salary is reduced within three years from the commencement of this Order because his services are not required or because his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed unless the contrary be shown to have suffered a direct pecuniary loss in consequence of this Order.

Determina-
tion of com-
pensation.

43.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Order regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

(2) Any compensation payable under this Order to any person whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 shall be paid out of the district fund and general district rate of the Borough and in every other case shall be paid out of the borough fund and borough rate of the Borough and the provisions of Section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

(a) Any reference in that Section to the county council shall be construed as a reference to the Corporation and in subsection (7) of that Section for the words “the same or any other county council” there shall be substituted the words “the council of any county or county borough or under any district council.”;

(b) References in that Section to “the passing of this Act” shall be construed as references to the commencement of this Order; and

(c) The expression in subsection (1) of that Section “the Acts and rules relating to Her Majesty’s Civil Service” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888.

(3) The compensation payable under this Order to an officer who at the date of the Act of Parliament confirming this Order shall hold two or more offices under any local authority or local authorities (as defined in Section 34 of the Local Loans Act 1875) and who shall have devoted the whole of his time to

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
 Extension) Act, 1924.*

the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of such offices. A.D. 1924.

(4) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty's Forces or the Forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence and the amount of his salary wages and emoluments during such temporary absence shall be deemed to be the amount which he would have received from the local authority during that period if he had remained in their actual service. Provided that in the case of an officer who after the Armistice voluntarily extended his term of service in the Forces no period of absence during such extension shall be so reckoned.

—
*Stratford-
 upon-Avon
 Order.*

(5) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that he had prior to his appointment served as a deputy assistant or clerk to any officer not holding a temporary appointment add any number of years (not exceeding ten) to the number of years which such officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and rules relating to Her Majesty's Civil Service as applied by this Order.

44. No officer shall be entitled to receive both compensation under this Order for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss. Compensation and superannuation.

45. The accounts of the Parish Council and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made : Audit of accounts of the Parish Council.

Provided that the audit may be held as soon as practicable after the commencement of this Order and that any sum certified by the District Auditor to be due from any person shall be paid to the Corporation and shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

46. Nothing in this Order shall empower the Corporation to claim to maintain or repair any main road situate within the added area. Saving for main roads within the added area.

47. No alteration effected by this Order shall cause to abate or shall prejudicially affect or prevent the continuance of any Savings for actions contracts &c.

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
 Extension) Act, 1924.*

A.D. 1924. action cause of action or proceeding which at the commencement
 — of this Order is pending or existing by or against the Rural
Stratford- Council or any contract deed bond agreement or other instrument
upon-Avon (subsisting at the commencement of this Order) entered into
Order. or made by that Council or their predecessors:

Provided that—

- (i) Any action cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to the added area or any part thereof may be continued prosecuted and enforced by or against the Corporation; and
- (ii) All contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council (or their predecessors) in relation exclusively to the added area or any part thereof may be continued and enforced as fully and effectually as if instead of that Council (or their predecessors) the Corporation had been a party thereto.

Saving for powers of Minister &c.

48. Nothing in this Order shall be construed as restricting the powers of the Minister under the Acts relating to the Relief of the Poor or the powers of the Secretary of State the Minister or of any county council under the Act of 1888 or the Act of 1894.

Parliamentary polling districts.

49. Nothing in this Order shall affect the powers of the County Council under Section 31 of the Representation of the People Act 1918 or any order or scheme made by the County Council for the division of the Parliamentary County of Warwick into polling districts and the appointment of polling places for parliamentary elections.

Ecclesiastical divisions and charities.

50. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Short title.

51. This Order may be cited as the Stratford-upon-Avon (Extension) Order 1924.

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xx.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

SCHEDULE.

A.D. 1924.

*Stratford-
upon-Avon
Order.*

CONFIRMATION ACTS IN FORCE IN THE EXISTING
BOROUGH.

PART I.

CONFIRMATION ACTS TO BE REPEALED IN SO FAR AS THEY
RELATE TO CERTAIN PROVISIONAL ORDERS THEREBY
CONFIRMED.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
13 & 14 Vict. c. 32.	The Public Health Supple- mental Act 1850.	The Provisional Order re- lating to Stratford-upon Avon.
15 & 16 Vict. c. 69.	The Public Health Supple- mental Act 1852 (No. 2).	The Provisional Order re- lating to Stratford-upon- Avon.

PART II.

CONFIRMATION ACTS TO BE EXTENDED TO THE BOROUGH.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
44 & 45 Vict. c. i.	The Local Government Board's Provisional Orders' Confirma- tion (Godalming &c.) Act 1881.	The Stratford-upon-Avon Order 1881.
51 & 52 Vict. c. lxi.	The Local Government Board's Provisional Orders Confirma- tion (No. 3) Act 1888.	The Stratford-upon-Avon Order 1888.
59 & 60 Vict. c. xxix.	The Local Government Board's Provisional Orders Confirma- tion (No. 4) Act 1896.	The Stratford-upon-Avon Order 1896.
1 Edw. 7 c. xxxix.	The Electric Lighting Orders Confirmation (No. 4) Act 1901.	The Stratford-upon-Avon Electric Lighting Order 1901.
2 Edw. 7 c. lxxxi.	The Local Government Board's Provisional Orders Confirma- tion (No. 5) Act 1902.	The Stratford-upon-Avon Order 1902.

[Ch. xx.] *Ministry of Health* [14 & 15 GEO. 5.]
*Provisional Order Confirmation (Stratford-upon-Avon
Extension) Act, 1924.*

A.D. 1924.

*Stratford-
upon-Avon
Order.*

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
5 Edw. 7 c. cxiii.	The Electric Lighting Orders Confirmation (No. 5) Act 1905.	The Stratford-upon-Avon Electric Lighting Order 1901 (Amendment) Or- der 1905.
2 & 3 Geo. 5 c. cxxxv.	The Local Government Board's Provisional Orders Confirma- tion (No. 9) Act 1912.	The Stratford-upon-Avon Order 1912.
3 & 4 Geo. 5 c. xxv.	The Local Government Board's Provisional Orders Confirma- tion (No. 3) Act 1913.	The Stratford-upon-Avon Order 1913.

Given under the Official Seal of the Minister of Health
this First day of April One thousand nine hundred
and twenty-four.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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